

The M.P. Anatomy Rules, 1966

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State of Madhya Pradesh - Act

The M.P. Anatomy Rules, 1966

MADHYA PRADESH

India

The M.P. Anatomy Rules, 1966

Rule 5580-1593-17-MED-4 of 1966

Published on 24 December 1966

Not commenced

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Notification No. 5580-1593-XVII-Med. IV, dated 24th December, 1966. - in exercise of the powers conferred by Section 10 of the Madhya Pradesh Anatomy Act, 1954 (No. 15 of 1954), the State Government hereby makes the following rules, namely :

1.

These rules may be called The Madhya Pradesh Anatomy Rules, 1966.

2.

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Madhya Pradesh Anatomy Act, 1954.

(b)

"Unclaimed dead body" means the body of a deceased person which is not claimed by any of his near relatives or by

any person of his caste, creed and religion within 72 hours of his death.

3.

(1)

Every officer and servant of the Police, Medical and Public Health Department, every officer and servant in the Service of a local authority and every village officer and servant who comes to know of the death of any person in the service of a local authority and every village officer and servant in any public place in any area in which he has no permanent place of residence shall report the fact to the officer-in-charge of the nearest Police Station with the least practicable delay.

(2)

On receipt of the report under sub-rule (1) the officer-in-charge of the Police Station shall immediately make arrangement for the removal of the dead body to the hospital for preservation from decay and also report the fact to the authorised officer.

(3)

Notwithstanding anything contained in sub-rule (2), it shall be the duty of the Patel or Sarpanch of the village in or near which the dead body may be found to arrange for the removal of the dead body to the nearest hospital for preservation from decay and also to report the fact to the officer-in-charge of the nearest Police Station.

(4)

The bills for the cost of removal of the dead body to the hospital shall be sent to the officer-in-charge of the hospital concerned which shall be paid by him. The said officer shall also inform the authorised officer of the dead body having been brought to the hospital in his charge and of its preservation.

4.

(1)

Where a person dies in a hospital or in a prison the officer-in-charge of such hospital or prison shall immediately report the fact to the nearest relative mentioned in the records of the patient or prisoner. If the said relative does not claim the body within 72 hours, the dead body shall be disposed off in the manner laid down in Section 5 of the Act.

(2)

Pending receipt of the claim, if any, in pursuance of sub-rule (1) the dead body shall be removed to the hospital or the teaching medical institution, as the case may be, for preservation from decay.

(3)

If such body is not claimed within the period specified in sub-rule (1) the authorised officer shall proceed to dispose of the body in the manner laid down in Section 5 of the Act.

(4)

If any of the approved institutions does not require the dead body for the anatomical examination and dissection, the authorised officer concerned shall deliver it to the rightful claimant or if no such claim is forthcoming, dispose of the dead body by cremation or burial, as the case may be.

5.

The person intending to dedicate his dead body for the purpose of anatomical examination and dissection shall inform of his intention in writing to the authorised officer of the District concerned. The authorised officer shall maintain a record of all such dedications in the form appended to these rules.

6.

(1)

Any matter under Section 3 of the Act relating to any doubt or dispute in respect of a dead body shall be referred to the officer appointed thereunder, by an application in writing and shall be delivered personally to the said officer.

(2)

On receipt of the application under sub-rule (1) the officer appointed under Section 3 of the Act shall immediately fix a date for hearing within two days of the receipt of such reference and inform the parties accordingly.

(3)

After hearing the parties concerned, the officer appointed by the State Government under Section 3 of the Act may make such further enquiry as he may think proper and fit to dispose of the case and shall give his decision on the date of hearing and his decision shall be final and conclusive.

7.

The authorised officer shall make arrangement for the preservation of unclaimed dead bodies in ice or mortuary cooler so as to preserve it from decay until-

(a)

a decision has been taken under Section 3 of the Act; or

(b)

it is handed over to his relative, friend or servant; or

(c)

it is handed over to a medical institution for anatomical examination or dissection.

8.

Nothing contained in these rules shall apply to cases where death has taken place under suspicious circumstances and the body is required for medico-legal examination. In such case, if the Police have not taken possession of it themselves, the body shall be handed over to the Police.

9.

The Madhya Bharat Pathology and Anatomy Rules, 1956 and all other rules corresponding to these rules in force in any region of the State of Madhya Pradesh immediately before the commencement of these rules are hereby repealed :

Provided that anything done or any action taken under any of the rules so repealed shall, unless such thing or action is inconsistent with any of the provisions of these rules, be deemed to have been done or taken under the corresponding provisions of these rules.

Form

(See Rule 5)

Register of persons intending to dedicate their dead bodies for the purpose of anatomical examination and dissection.

District.....

S.No.

Name and address of the person intending to dedicate his dead body for the purpose of anatomical examination and dissection

Date of receipt of application

Name of the approved institution to which the dead body will be sent

Date of handing over the dead body

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

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